



Banc Ceannais na hÉireann
Central Bank of Ireland
Eurosystem

Consumer Protection Code

Central Bank (Supervision and Enforcement) Act 2013 (Section 48) (Consumer Protection) Regulations 2025

Navigating the Regulations

You can navigate the main parts of the Consumer Protection Regulations using the numbered navigational links towards the top of this page. The "Contents" links can then be used to quickly access specific requirements.

In some parts of this HTML version of the Consumer Protection Code 2025, we have indicated where there is supplementary guidance available for specific requirements.

Where a heading in the "Contents" navigation includes a (G), this indicates that guidance is available for that particular requirement.

Direct links to guidance related to a specific requirement are presented within the requirements as follows:

G: SCI = Links to the relevant part of the Guidance on Securing Customers' Interests

G: VC = Links to the relevant part of the Guidance on Protecting Consumers in Vulnerable Circumstances

G: GEN = Links to the relevant part of the General Guidance on the Consumer Protection Code

The full PDF of the Central Bank (Supervision and Enforcement) Act 2013 (Section 48) (Consumer Protection) Regulations 2025 is available here on the Irish Statute Book website.

In exercise of the powers conferred on the Central Bank of Ireland (the "Bank") by section 48 of the Central Bank (Supervision and Enforcement) Act 2013 (No. 26 of 2013) (the "Act"), the Bank, having consulted, in accordance with section 49 of the Act, with the Minister for Finance, the Minister for Enterprise, Trade and Employment and other persons that the Bank considers appropriate to consult in the circumstances, hereby makes the following regulations:

Part 1: Preliminary and General

1. Citation and commencement (G)

G: GEN (PDF 844.1KB)

(1) These Regulations may be cited as the Central Bank (Supervision and Enforcement) Act 2013 (Section 48) (Consumer Protection) Regulations 2025.

(2) These Regulations come into operation on 24 March 2026.

2. Interpretation (G)

G: VC (PDF 814.71KB), G: GEN (PDF 844.1KB), G: GEN (PDF 844.1KB), G: GEN (PDF 844.1KB), G: GEN (PDF 844.1KB), G: GEN (PDF 844.1KB)

(1) In these Regulations –

“account information service” has the meaning given to it in Article 4 of Directive 2015/2366/EU of the European Parliament and of the Council of 25 November 2015^[1];

“Act of 1942” means the Central Bank Act 1942 (No. 22 of 1942);

“Act of 1995” means the Consumer Credit Act 1995 (No. 24 of 1995);

“Act of 1997” means the Central Bank Act 1997 (No. 8 of 1997);

“Act of 2014” means the Companies Act 2014 (No. 38 of 2014);

“Act of 2015” means the Assisted Decision-Making (Capacity) Act 2015 (No. 64 of 2015);

“advertised financial service” means the financial service that is the subject of an advertisement;

“advertisement” means any communication in respect of a regulated entity, which is addressed to the consumer public or a section of it, the purpose being to advertise a regulated activity or a regulated entity the subject of these Regulations, excluding name plaques, material that only communicates the regulated entity’s brand name rather than the promotion of a specific financial service, and a prospectus drawn up in accordance with the Prospectus Regulation;

“arrears” means, subject to the specific definitions of “arrears” which apply pursuant to Regulations 219 and 280(1) respectively, arrears which arise where a personal consumer –

- (a) has not made a full repayment of all outstanding amounts due, or only makes a partial repayment of any such amount, as set out in the original loan account contract, hire-purchase agreement, consumer-hire agreement or BNPL-agreement, by the scheduled due date, or
- (b) in the case of a credit card account, has not made the minimum repayment by the due date for such repayment,

and “in arrears” means a situation in which arrears have arisen.

“associate” in relation to a person (the “first person”) means –

- (a) an undertaking in the same group as that first person,
- (b) any other person whose business, private or familial relationship (other than as arises solely because that person is a client of the firm) with the first person or its associate might reasonably be expected to give rise to a common interest between them which may involve a conflict of interest in dealings with third parties, or
- (c) any other persons whose business, private or familial relationship (other than as arises solely because that person is a client of the firm) with the first person is such that he or she has influence over the first person’s judgment as to how to invest the first person’s property or exercise any rights attaching to the first person’s investments;

“associated undertaking” means an associated undertaking within the meaning of the Act of 2014;

“Bank” means Central Bank of Ireland;

“BNPL” means buy now pay later;

“BNPL agreement” means an agreement for the provision of credit, as defined in section 28 of the Act of 1997, indirectly to a consumer for the purchase of goods or services from a vendor, whereby the provider of the credit makes a payment to the vendor in respect of the goods or services and the consumer owes an equivalent amount to the provider of the credit;

“bundle” means the bundle referred to in the definition of “bundling”;

“bundling” means the packaging of 2 or more distinct products into a bundle, where each of these products can be purchased separately from or through the regulated entity;

“Central Credit Register” means the Central Credit Register referred to in section 5 of the Credit Reporting Act 2013 (No. 45 of 2013);

“certified person” has the meaning given to it in section 55 of the Investment Intermediaries Act 1995 (No. 11 of 1995);

“charge” means, except where otherwise stated, any cost or fee which a consumer must pay in connection with a financial service provided by a regulated entity;

“claimant” means any of the following:

- (a) a consumer making a claim under an insurance policy;
- (b) a person (in this definition referred to as a “third party”) making a claim of liability against another person (in this definition referred to as the “policyholder”), in circumstances where -
 - (i) the insurance undertaking with whom the policyholder is insured is handling the claim made by the third party, and
 - (ii) (but for the fact that the third party may not be a customer of the insurance undertaking referred to in subparagraph (b) (i), the third party otherwise meets the definition of a consumer;
- (c) an actual or potential beneficiary under an insurance policy who is making a claim under that policy and who, but for the fact that the beneficiary may not be a customer of the relevant insurance undertaking, otherwise meets the definition of a consumer;

“complaint” means, subject to Regulation 260, an expression of grievance or dissatisfaction by a consumer, either orally or in writing, in connection with -

- (a) the provision or the offer of the provision of a financial service to a consumer by a regulated entity, or
- (b) the failure or refusal of a regulated entity to provide a financial service to a consumer;

“connected party” shall, except where otherwise stated, include -

- (a) a partner, officer, controller, associated undertaking, related undertaking or subsidiary undertaking or employee of the regulated entity, including any associate of the person concerned, and
- (b) in the case of a high cost credit provider, includes, in addition to paragraph (a), a person authorised to engage in the business of high cost credit on behalf of a high cost credit provider, including any associate of the person concerned

“consumer” means, subject to paragraph (4), a customer that is -

- (a) a natural person,
- (b) a group of natural persons, including a partnership, club, charity, trust or other unincorporated body, or
- (c) an incorporated body, that is not -
 - (i) an incorporated body that had an annual turnover in excess of €5 million in the previous financial year, or
 - (ii) an incorporated body that is a member of a group of companies having a combined turnover greater than €5 million;

“consumer-hire agreement” has, subject to paragraph (3), the meaning given to it in section 2 of the Act of 1995;

“consumer in vulnerable circumstances” means a consumer that is a natural person and whose personal circumstances, whether permanent or temporary, make that consumer especially susceptible to harm, particularly where a regulated entity is not acting with the appropriate levels of care, and “vulnerable circumstances” shall be construed accordingly;

“credit institution” means an undertaking which satisfies point (a) of the definition of “credit institution” in Article 4(1) of Regulation (EU) No 575/2013 of the European Parliament and of the Council of 26 June 2013^[2];

“Crowdfunding Regulation” means Regulation (EU) 2020/1503 of the European Parliament and of the Council of 7 October 2020^[3];

“crowdfunding service” has the meaning given to it in Article 2 of the Crowdfunding Regulation;

“crowdfunding service provider” has the meaning given to it in Article 2 of the Crowdfunding Regulation;

“customer” means, subject to paragraph (3) -

- (a) any person to whom a regulated entity provides or offers financial services,
- (b) any person who requests the provision of financial services from the regulated entity,
- (c) a relevant borrower in a case where a regulated entity undertakes credit servicing in respect of the credit agreement

concerned, or

- (d) a hirer in a case where a regulated entity undertakes credit servicing in respect of the consumer-hire agreement or hire-purchase agreement concerned,

and includes, where appropriate, a potential “customer” and former “customer” within the above meaning;

“debt management firm” has the meaning given to it by section 28 of the Act of 1997;

“debt management services” has the meaning given to it by section 28 of the Act of 1997;

“deposit agent” means any person who holds an appointment in writing from a single credit institution enabling him to receive deposits on behalf of that institution and prohibiting him from acting in a similar capacity on behalf of another credit institution;

“deposit broker” means any person who brings together with credit institutions persons seeking to make deposits in return for a fee, commission or other reward;

“digital platform” means an online system through which contracts can be concluded to provide financial services to consumers, or a website or application that provides access to consumers to conclude contracts for the provision of financial services;

“Distance Marketing Regulations” means European Communities (Distance Marketing of Consumer Financial Services) Regulations 2004 (S.I. No. 853 of 2004);

“durable medium” means any instrument that enables a recipient to store information addressed personally to the recipient in a way that renders it accessible for future reference for a period of time adequate for the purposes of the information and which allows the unchanged reproduction of the information stored;

“employee” means, unless the context otherwise requires, a person employed under a contract of service or a person otherwise employed by a regulated entity;

“fair analysis of the market” means providing services on the basis of a sufficiently large number of contracts or investment products and product producers available on the market to enable the intermediary to make a recommendation, in accordance with professional criteria, regarding which contract or investment product would be adequate to meet the consumer’s needs;

“financial abuse” means any of the following:

- (a) the wrongful or unauthorised taking, withholding, appropriation, or use of a consumer’s money, assets or property;
- (b) any act or omission by a person, including through the use of a power of attorney, guardianship, or any other authority regarding a consumer, to –
 - (i) obtain control, through deception, intimidation or undue influence, over the consumer’s money, assets or property, or
 - (ii) wrongfully interfere with or deny the consumer’s ownership, use, benefit or possession of the consumer’s money, assets or property;

“financial services” include financial products;

“Financial Services and Pensions Ombudsman” has the meaning given to it in section 2(1) of the Act of 1942;

“group” includes, unless otherwise specified, a company, its parent and its subsidiaries and any associated undertaking or related undertaking;

“health insurance contract” has the meaning given to it in section 2(1) of the Health Insurance Act 1994 (No. 16 of 1994);

“high cost credit” has the meaning given to it in section 2 of the Act of 1995;

“high cost credit provider” has the meaning given to it in section 2 of the Act of 1995 and includes a representative of a high cost credit provider;

“hire-purchase agreement” has, subject to paragraph (3), the meaning given to it in section 2 of the Act of 1995;

“home reversion agreement” has the meaning given to it in section 28 of the Act of 1997;

“Insurance and Reinsurance Regulations” means the European Union (Insurance and Reinsurance) Regulations 2015 (S.I. No. 485 of 2015);

“insurance-based investment product” has the meaning given to it by Regulation 2 of the Insurance Distribution Regulations;

“Insurance Distribution Regulations” means the European Union (Insurance Distribution) Regulations 2018 (S.I. No. 229 of 2018);

“insurance intermediary” includes insurance intermediaries and ancillary insurance intermediaries that are subject to the Insurance Distribution Regulations;

“insurance undertaking” means an insurance undertaking within the meaning of, as appropriate, Regulation 3 of the Insurance and Reinsurance Regulations, Regulation 2 of the European Communities (Non-Life Insurance) Framework Regulations 1994 (S.I. 359 of 1994), or Regulation 2 of the European Communities (Life Assurance) Framework Regulations 1994 (S.I. No. 360 of 1994);

“interest-only mortgage” means a mortgage loan for which a consumer is required to make interest repayments to a regulated entity for a specified period and no capital repayments during that same period;

“introductory interest rate” means an interest rate favourable to the consumer that applies for a specified period of time at the beginning of the contract;

“investment product” means:

- (a) an “investment instrument” within the meaning of section 2 of the Investment Intermediaries Act 1995 and “crypto-asset” within the meaning of article 3 of MiCAR, and
- (b) an insurance product which offers a maturity or surrender value and where that maturity or surrender value is wholly or partially exposed, directly or indirectly, to market fluctuations but does not include -
 - (i) non-life insurance products as listed in Annex I to Directive 2009/138/EC of the European Parliament and of the Council of 25 November 2009^[4], and
 - (ii) life insurance contracts where the benefits under the contract are payable only on death or in respect of incapacity due to injury, sickness or disability;

“key information” means any information which is likely to influence a consumer’s actions with regard to a financial service;

“life insurance” means insurance of a class falling within Schedule 2 to the Insurance and Reinsurance Regulations or Annex I to the European Communities (Life Assurance) Framework Regulations 1994;

“lifetime mortgage” means a loan secured on a borrower’s residential property where -

- (a) interest payments are rolled up on top of the capital throughout the term of the loan,
- (b) the capital is repaid on a specified event or events, or by repayments as detailed in the terms of the loan, and
- (c) the borrower retains ownership of the residential property;

“MABS” means the Money Advice and Budgeting Service established by the State to provide money advice services;

“Member State” means a state that is a member of the European Union and, where relevant, includes a contracting party to the Agreement on the European Economic Area signed at Oporto on 2 May 1992 as adjusted by all subsequent amendments to that agreement;

“MiCAR” means Regulation (EU) 2023/1114 of the European Parliament and of the Council of 31 May 2023^[5];

“MiFID Article 3 services” means the services specified in Regulation 4(3) of the MiFID Regulations 2017, transposing Article 3(1)(b) and Article 3(1)(c) of Directive 2014/65/EU of the European Parliament and of the Council of 15 May 2014^[6];

“MiFID Delegated Regulation” means Commission Delegated Regulation (EU) 2017/565 of 25 April 2016 supplementing Directive 2014/65/EU of the European Parliament and of the Council^[7];

“MiFID Regulations 2017” means the European Union (Markets in Financial Instruments) Regulations 2017 (S.I. No. 375 of 2017);

“mortgage borrower” means a mortgage borrower that is an individual and includes all individuals that are parties named on the mortgage loan account;

“mortgage intermediary” has the meaning specified in section 2 of the Act of 1995 and shall include a mortgage credit intermediary within the meaning of Regulation 3 of the European Union (Consumer Mortgage Credit Agreements) Regulations 2016 (S.I. No. 142 of 2016);

“non-life insurance” means insurance of a class falling within Part 1 of Schedule 1 to the Insurance and Reinsurance Regulations or Part A of Annex I to the European Communities (Non-Life Insurance) Framework Regulations 1994;

“officer” has the meaning given to it in section 28 of the Act of 1997;

“payment service” has the meaning given to it in Article 4 of Directive 2015/2366/EU of the European Parliament and of the Council of 25 November 2015;

“person” means, unless otherwise specified, a natural person or a legal person;

“personal consumer” means a consumer who is a natural person acting outside his or her business, trade or profession;

“power of attorney” has the meaning given to it in the Powers of Attorney Act 1996 (No. 12 of 1996);

“PRIIPs Regulation” means Regulation (EU) No 1286/2014 of the European Parliament and of the Council of 26 November 2014^[8];

“product producer” means any regulated entity that produces, manufactures or packages a product of a financial or investment nature, and is not limited to a product producer as defined in the Investment Intermediaries Act 1995;

“Prospectus Regulation” means Regulation (EU) 2017/1129 of the European Parliament and of the Council of 14 June 2017^[9];

“protection policies” includes the following:

- (a) policies of non-life insurance;
- (b) policies of life insurance of classes 1, 3 or 4 as set out in Schedule 2 to the Insurance and Reinsurance Regulations, or classes I, III or IV as set out in Annex I to the European Communities (Life Assurance) Framework Regulations 1994, where the purpose and intention of the policy is solely to provide benefits on death or in respect of incapacity due to injury, sickness or disability;

“record” means any document, file or other record of information, whether stored electronically or otherwise, and which is capable of being reproduced in a legible form;

“regulated activities” means the provision of financial services that are provided in the State by a regulated entity and which are subject to the regulation of the Bank and a “regulated activity” is the provision of any one such financial service;

“regulated entity” means a financial services provider authorised, registered or licensed by –

- (a) the Bank,
- (b) a state (other than the State) that is a member of the European Union, or
- (c) a state (other than the State) that is a contracting party to the Agreement on the European Economic Area signed at Oporto on 2 May 1992, as adjusted by all subsequent amendments to that agreement,

that is providing regulated activities in the State;

“related undertaking” means –

- (a) companies related within the meaning of section 2(10) of the Act of 2014,
- (b) undertakings where the business of those undertakings is carried on in such a way that the separate business of each undertaking, or a substantial part thereof, is not readily identifiable, or
- (c) undertakings where the decision as to how and by whom each shall be managed can be made either by the same person or by the same group of persons acting in concert;

“residential property” has the meaning given to it in Regulation 2(1) of the Central Bank (Supervision and Enforcement) Act 2013 (Section 48) (Housing Loan Requirements) Regulations 2022 (S.I. No. 546 of 2022);

“terms of business” means the document in which a regulated entity sets out the basis on which it will conduct business with consumers;

“tracker bond” means a deposit or life insurance policy which has either or both of the following features:

- (a) it provides for a minimum payment, at the expiration of a specified period of time, of a specified percentage of the amount of capital invested by a consumer in the product;
- (b) it provides for a potential cash bonus payable after a specified period of time, which is linked to, or determined by, changes over the period of investment in the level of one or more recognised stock market indices, commodity prices, any other recognised financial indices or the price of one or more securities specified at the outset or from time to time;

“tracker interest rate” means a mortgage interest rate which tracks a rate which comes from a publicly available source which can be verified by both the consumer and the regulated entity, including without limitation, a rate that tracks the European Central Bank main refinancing operations rate;

A1 [“working day” means a day which is not a Saturday, Sunday, Good Friday or public holiday (within the meaning of the Organisation of Working Time Act 1997).]

(2) Unless otherwise stated –

- (a) references to provision of products means provision of financial services the subject of these Regulations, and
- (b) references to the provision of services in these Regulations include the provision of advice.

(3) For the purposes of the definition of “customer” in paragraph (1), “relevant borrower”, “credit servicing”, “credit agreement”, “consumer-hire agreement”, “hire-purchase agreement” and “hirer” have the same meaning as in Part V of the Act of 1997.

(4) Where a high cost credit provider is engaged in the activity of providing high cost credit, “consumer” means a consumer within the meaning of the Act of 1995.

3. Scope and application (G)

G: GEN (PDF 844.1KB)

(1) These Regulations apply to the regulated activities of regulated entities operating in the State.

(2) Subject to paragraph (1), unless specified in an individual Regulation, Chapter or Part, these Regulations apply in respect of –

- (a) customers in the State that are consumers or, where specified, personal consumers, mortgage borrowers, or consumers within the meaning of the Act of 1995, and
- (b) insofar as concerns Chapter 10 of Part 4, unless otherwise specified in the context of an individual regulation of that Chapter, claimants in the State.

(3) Where these Regulations apply, the application of these Regulations is further subject to Regulations 4 to 14.

(4) These Regulations do not apply in the circumstances referred to in Regulation 15.

4. Restricted application where European Communities (Consumer Credit Agreements) Regulations 2010 apply

(1) Where a regulated entity is providing credit under credit agreements which fall within the scope of the European Communities (Consumer Credit Agreements) Regulations 2010 (S.I. No. 281 of 2010), only the following provisions of these Regulations, in addition to this Part and Part 6, apply to that regulated entity:

- (a) The following provisions of Part 2:
 - (i) Regulations 20 to 29;
 - (ii) Chapters 3 and 4;
 - (iii) Regulations 44 to 46;

- (iv) Regulations 71(1) to 71(5);
- (v) Chapter 8;
- (vi) Chapters 10 to 15;
- (b) The following provisions of Part 3:
 - (i) Regulation 137;
 - (ii) Regulation 167;
 - (iii) Chapters 3, 5, 7 and 10;
- (c) Chapter 3 of Part 4;
- (d) Regulation 369 and Chapter 5 of Part 5.

(2) This Regulation applies subject to Regulation 6.

5. Restricted application where European Union (Consumer Mortgage Credit Agreements) Regulations 2016 apply

(1) The following Regulations do not apply to activities within the scope of the European Union (Consumer Mortgage Credit Agreements) Regulations 2016:

- (a) Regulation 16(11);
- (b) Regulation 30, Regulation 31 and Regulation 33;
- (c) Regulation 61;
- (d) Regulation 66;
- (e) Regulation 90 and Regulation 91;
- (f) Regulation 130(4);
- (g) Regulation 164(a) and Regulation 164(c).

(2) The following Regulations do not apply to the provision of advisory services and credit intermediate services when within the scope of the European Union (Consumer Mortgage Credit Agreements) Regulations 2016:

- (a) Regulation 27(1)(a);
- (b) Regulation 67;
- (c) Regulation 163.

6. Restricted application to high cost credit providers

Where a high cost credit provider is engaged in the activity of providing high cost credit, only the following provisions of these Regulations, in addition to this Part and Part 6, apply to that high cost credit provider:

- (a) The following provisions of Part 2:
 - (i) Chapter 3;
 - (ii) Regulation 45, Regulation 49 and Regulation 50;
 - (iii) Regulation 71(1) to Regulation 71(5), and Regulation 72;
 - (iv) Regulation 74, Regulation 77(1)(a), Regulation 77(1)(b), Regulation 77(2)(a) to Regulation 77(2)(g), Regulation 78, Regulation 79, Regulation 80(a), Regulation 80(d), Regulation 82, Regulation 85(a), Regulation 85(c), Regulation 85(d) and Regulation 87;
 - (v) Chapters 11, 12 and 14;
 - (vi) Regulation 119, Regulation 120, and Regulation 128;
- (b) The following provisions of Part 3:
 - (i) Chapter 8;
 - (ii) Regulation 274 (and for that purpose, reference to “arrears” in Regulations 274 shall be read as referring to “arrears” as defined in Regulation 280);
 - (iii) Chapter 11.

7. Restricted application to credit unions

These Regulations apply to credit union activities only when acting as insurance intermediaries.

8. Restricted application in respect of relevant activities related to SMEs

Chapter 12 of Part 2, and Regulation 115(1)(m) do not apply to the extent that the complaint is in relation to one or more “relevant activities” within the meaning of that term in Regulation 2 of the Central Bank (Supervision and Enforcement) Act 2013 (Section 48) (Lending to Small and Medium-Sized Enterprises) Regulations 2015 (S.I. No. 585 of 2015).

9. Restricted application where providing payment services or issuing electronic money

(1) Where a regulated entity is providing payment services or issuing electronic money, only the following provisions of these Regulations, in addition to this Part and Part 6, apply to that regulated entity:

- (a) The following provisions of Part 2:
 - (i) Regulations 22 to 29;
 - (ii) Chapters 3 and 4;
 - (iii) Regulation 71(1) to 71(6);
 - (iv) Chapter 8;
 - (v) Regulation 74, and Regulations 77 to 88;
 - (vi) Chapters 10 to 13;
 - (vii) subparagraphs (a) (b), (c), (d), (e), (f), (j), (k), (m) and (n) of Regulation 115(1), and Regulations 117 to 118;
 - (viii) Regulations 119 and 120;
- (b) The following provisions of Part 3:
 - (i) Regulations 155 and 156;
 - (ii) Regulation 164;
 - (iii) Chapter 10.

(2) Paragraph (1) is subject to Regulation 10, Regulation 97(2), Regulation 98(3), and Regulation 105(5).

(3) In this Regulation, “electronic money” has the meaning given to it in Regulation 3 of the European Communities (Electronic Money) Regulations 2011 (S.I. No. 183 of 2011).

10. Restricted application to regulated entities providing solely account information services

Where a regulated entity is providing solely account information services, Chapter 12 of Part 2, and Regulation 115(1)(m) do not apply to that regulated entity.

11. Restricted application to insurance distributors and insurance-based investment products

(1) Regulation 27, Regulation 59, Regulation 61, Regulations 90 to 91, and Chapter 5 of Part 5 do not apply to insurance distributors.

(2) Regulation 22, Regulation 24, Regulation 26, Regulations 28 to 29 and Regulation 66 do not apply to the distribution of insurance-based investment products.

(3) Chapter 1 of Part 2 and Regulation 370 do not apply to the provision of advice on insurance-based investment products.

(4) In this Regulation, “insurance distributor” has the meaning given to it by Regulation 2 of the Insurance Distribution Regulations.

12. Restricted application to packaged retail and insurance-based investment products

Regulations 59, 371, and 376, and Schedule 7 do not apply in relation to packaged retail and insurance-based investment products within the scope of the PRIIPs Regulation.

13. Restricted application to crowdfunding services

Where a regulated entity is providing crowdfunding services, only the following provisions of these Regulations, in addition to this Part and Part 6, apply to that regulated entity:

- (a) The following provisions of Part 2: Regulation 71(7), Regulation 74, Regulations 77 to 79, Regulation 80(a), Regulation 80(d), Regulations 81 to 84, Regulation 85(a), Regulation 85(c), Regulation 85(d), and Regulations 87 to 89;
- (b) The following provisions of Part 5 (such following provisions apply notwithstanding Regulation 381): Regulation 386, Regulation 389, Regulation 391, and Regulation 396.

14. Restricted application to MiCAR services

Where a regulated entity is providing a service regulated under MiCAR, only the following provisions of these Regulations, in addition to this Part and Part 6, apply to that regulated entity:

- (a) The following provisions of Part 2:
 - (i) Regulation 16(9), Regulation 16(13), Regulation 18(6) and Regulation 18(7);
 - (ii) Chapters 3 and 4;
 - (iii) Regulations 44 to 45, Regulation 49, Regulation 51(1), Regulation 51(2), Regulation 51(4), Regulations 60 to 65;
 - (iv) Regulations 69 to 70;
 - (v) Regulation 71(1) to (6);
 - (vi) Chapter 8;
 - (vii) Regulations 74 to 78, Regulations 80 to 83, Regulation 85, Regulation 87, and Regulation 88;<
 - (viii)Chapter 11;
 - (ix) Regulations 101 to 104, and Regulation 106;
 - (x) Regulation 108, Regulation 109(1)(a), Regulation 109(1)(b), Regulation 109(1)(d), Regulation 109(2), Regulation 110(1) (a) to (d), Regulation 110(2), and Regulations 111 to 114;
 - (xi) Regulation 115(1)(a) to (l), Regulation 115(1)(n), Regulation 115(2), and Regulations 116 to 118;
 - (xii) Regulations 120, Regulations 124 to 125, and Regulation 128;
- (b) The following provisions of Part 5:
 - (i) Regulations 369 to 370;
 - (ii) Regulation 372;
 - (iii) Regulations 381 to 399;
 - (iv) Regulations 402 to 405.

15. Circumstances in which these Regulations do not apply

These Regulations do not apply to the following:

- (a) services provided by regulated entities to persons outside the State;
- (b) any service or activity set out in Schedule 1 of the MiFID Regulations 2017, but not including any service or activity of a person to whom such Regulations do not apply by virtue of Regulation 4(3) of the MiFID Regulations 2017;
- (c) reinsurance business.

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1. OJ No. L 337, 23.12.2015, p.35 ↑
 2. OJ L 176, 27.6.2013, p. 1 ↑
 3. OJ L 347, 20.10.2020, p. 1 ↑
 4. OJ No. L 335, 17.12.2009, p. 1 ↑
 5. OJ L 150, 9.6.2023, p. 40 ↑
 6. OJ L 173, 12.6.2014, p 349 ↑
 7. OJ L 87, 31.3.2017, p. 1 ↑
 8. OJ L 352, 9.12.2014, p. 1. ↑
 9. OJ L 168, 30.6.2017, p. 12. ↑

